

Geetha vs P. Sivagururaj on 3 August, 2022

Author: V.M.Velumani

Bench: V.M.Velumani

C.M.A.Nos.1907 & 1917 of 2015

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 03.08.2022

CORAM:

THE HONOURABLE MS.JUSTICE V.M.VELUMANI
AND
THE HONOURABLE MR.JUSTICE S. SOUNTHAR

C.M.A.Nos.1907 & 1917 of 2015
&
M.P. No.1 of 2015

Geetha ...Appellant in both the appeals
Vs.

P. Sivagururaj ... Respondent in both the appeals

Common Prayer: Civil Miscellaneous Appeals are filed under Section 19
Family Court Act, against the common order dated 17.04.2014 passed in
H.M.O.P. Nos.689 & 821 of 2007, on the file of the
Coimbatore.

In both appeals

For Appellant : Mrs. J. Kalpana Devi
for Mr. V. Sivakumar

For Respondent : Mr.T.S. Vijayakumar

<https://www.mhc.tn.gov.in/judis>

C.M.A.Nos.1907 & 1917 of 2015

COMMON JUDGMENT

(Judgment of the Court was delivered by V.M.VELUMANI, J.) The respondent/husband filed H.M.O.P.No.689 of 2007 under Section 12(1)(c) of the Hindu Marriage Act, 1955, to declare the marriage that was conducted on 15.02.2007 between the appellant and respondent as null and void. The appellant/wife filed H.M.O.P.No.821 of 2007 under Section 9 of the Hindu Marriage Act, 1955, for restitution of conjugal rights. Both the petitions were tried together and the H.M.O.P.No.689 of 2007 filed by the respondent/husband under Section 12(1)(c) of the Hindu Marriage Act, 1955, is decreed as prayed for and the H.M.O.P.No.821 of 2007 filed by the appellant/wife under Section 9 of the Hindu Marriage Act, 1955, is dismissed. Aggrieved by the same, the appellant has come out with the present appeal.

2. When the matters are taken up for hearing today, both the appellant and respondent appeared before this Court. They were identified by their respective counsel. The learned counsel appearing for the appellant and respondent along with the parties represented that the parties have arrived at the settlement and are filing a Memo of Compromise, duly signed by both the <https://www.mhc.tn.gov.in/judis> C.M.A.Nos.1907 & 1917 of 2015 & M.P. No.1 of 2015 appellant as well as respondent and their respective counsel and prayed for dismissal of Civil Miscellaneous Appeals.

3. The Memo of Compromise dated 26.07.2022, duly signed by both the appellant as well as respondent and their respective counsel is taken on file, the same is recorded and the Civil Miscellaneous Appeals are dismissed as per the terms of the Memo of Compromise. The Memo of Compromise dated 26.07.2022 shall form part of the decree. No costs. Consequently connected Miscellaneous Petition is closed.

4. The learned counsel appearing for the respondent submitted that the respondent has agreed to pay a sum of Rs.4,00,000/- to the appellant as one time settlement for the welfare and upbringing of the child and that the agreed amount will be paid on or before 25.08.2022. Registry is directed to post these matters on 26.08.2022 for reporting compliance.

(V.M.V., J.)

03.08.2

Index : Yes / No
Internet : Yes/ No

bga

<https://www.mhc.tn.gov.in/judis>

C.M.A.Nos.1907 & 1917 of 2015 & M.P. No.1 of 2015 V.M.VELUMANI,J.

and S. SOUNTHAR, J.

bga To

1. Family Court, Coimbatore.
2. The Section Officer, V.R. Section, High Court, Madras.

C.M.A.Nos.1907 & 1917 of 2015 & 03.08.2022 <https://www.mhc.tn.gov.in/judis>